

ZHANG v. VW GROUP OF AMERICA
Case No. cu24-10066

Motion by Plaintiff to Compel Further Responses to Request for Production of Documents, Set One

TENTATIVE RULING

The motion at issue concerns discovery common to Lemon Law cases, and although not addressed recently in reported appellate court cases, many trial courts in other Lemon Law cases have heard and ruled on similar prior motions, some involving one or both of the experienced Lemon Law attorneys in the present case (as confirmed by “cut and paste” errors in the filings of one or both parties on this present motion).

The parties thus are no doubt aware that most trial courts have consistently found that materials such as workshop manuals and complaints of similar defects by other customers who purchased vehicles in California of the same year, make and model, as well as TSBs, Recall Notices and electronically stored information (ESI) for similar defects in vehicles of the same year, make and model are typically discoverable when civil penalties are among the remedies being sought in the action. See generally Santana v. FCA US, LLC (2020) 56 Cal.App.5th 334.

The court also notes that although Defendant VOLKSWAGEN GROUP OF AMERICA, INC. (“VW”) provided initial responses to the subject document requests that consisted solely of objections, it later provided supplemental responses in July 2025, almost a year ago, containing no objections, and including representations that it would produce the responsive documents.

While some additional production has occurred, as recently as late May, it appears from the filings on this motion (incomplete and/or ambiguous as they are) that no workshop manual has been produced; only a spreadsheet regarding Other Similar Incidents (“OSI”) has been produced, without any of the foundational materials required to compile the spreadsheet; and no ESI as to VW’s investigation regarding the type of defects alleged by Plaintiff.

Although VW’s opposition has claimed production of the ESI would constitute an undue burden, it has not presented the court with any evidence as to what burden would be caused by requiring the production. 2 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2025) §8:1008.1, p. 29 [“The objecting party must supply evidence to support its claim of undue or excessive burden, showing the quantum of work required. Absent such evidence, the trial court has nothing ‘upon which to base a comparative judgment that any responsive burden would be undue or excessive, relative to the likelihood of admissible evidence being discovered.’” (citing *Williams v. Superior Court* (2017) 3 Cal.5th 531, 549-550)].

See also C.C.P. §2031.310(d):

In a motion under subdivision (a) relating to the production of electronically stored information, the party or affected person objecting to or opposing the production, inspection, copying, testing, or sampling of electronically stored information on the basis that the information is from a source that is not reasonably accessible because of the undue burden or expense shall bear the burden of demonstrating that the information is from a source that is not reasonably accessible because of undue burden or expense.

The court also has concerns that VW's supplemental responses to the subject requests does not comply with C.C.P. §2031.210(a)(1), as production was promised without a specified date, and this subsection requires a statement of willingness to comply "by the date set for this inspection", a date that had passed long before service of the supplemental responses, and which is now more than a year earlier than this hearing date.

Because the court cannot conclusively determine what documents Plaintiff requested for production that VW's supplemental responses promised to produce have or have not been produced, parties are to appear at hearing as scheduled, to clarify what documents requested in document requests 10, 16, 19 and 20 have still not yet been produced by VW. However, both counsel should also bring their calendars. The court anticipates the possible need to continue hearing to a later date, at which both counsel will be required to **personally** appear before the court, so that it can inquire further, and also direct and monitor as appropriate additional efforts by these counsel to try to informally resolve these disputes through in-person meet and confer communications.

DOMINGUEZ-MURIETTA , et al. v. FEDERAL EXPRESS CORPORATION, et al.
Case No. CU26-03140

Motion by Attorney Alivia Abreu/Wilshire Law Firm, PLC to be Relieved as Attorney of Record

TENTATIVE RULING

The motion is granted, with withdrawal effective only upon prompt service on the client of the signed order.

THE FINISHING LAB, ET AL. v. ALEXANDER DAAS OPTICIANS, ET AL.
Case No. SC25-00370

Motion to Transfer Venue

TENTATIVE RULING

Defendant Daas Luxury Optics, Inc.'s motion to transfer venue is denied.